

BARR v. COUNTY OF CALAVERAS

18CV42976

PLAINTIFF'S MOTION FOR RECONSIDERATION

This is an employment dispute, based principally on the theory that plaintiff was retaliated against after blowing the whistle on department irregularities, and ultimately denied a promotion for which he was allegedly qualified. Before the Court is plaintiff's motion to revisit this Court's 01/07/22 ruling summarily adjudicating in defendants' favor plaintiff's 8th cause of action for *negligence per se* because it was not a stand-alone cause of action, also finding that in the context of public entity liability, it was surplusage.

Plaintiff's motion, which is described as a motion for reconsideration under CCP §1008, is defective in numerous respects.

First, a motion for reconsideration may only be pursued by the party aggrieved "within 10 days after service upon the party of written notice of entry of the order." (CCP §1008(a).) Plaintiff was served with notice of this Court's 01/07/22 order on 01/14/22 and (after plaintiff's objections were overruled) on 02/14/22. The pending motion filed 07/01/22 was obviously well outside the 10-day window. (See *Novak v. Fay* (2015) 236 Cal.App.4th 329, 335-336.) Although the "changed circumstance" underlying the motion only occurred a few days prior to the filing of this motion, the "changed circumstance" rule for reconsideration (CCP §1008(b)) as a renewed motion only applies to the "party who originally made an application for an order" and that was defendants, not plaintiff. (See *Torres v. Design Group Facility Solutions, Inc.* (2020) 45 Cal.App.5th 239, 243.)

Second, even if the motion for reconsideration were somehow timely, *negligence per se* is not – nor has it even been – a stand-alone cause of action distinct from ordinary negligence. Instead, it is an evidentiary doctrine which creates a rebuttable presumption affecting the elements of breach and duty when an identified statute, ordinance, or regulation is violated. Evidence Code §669 only addresses the breach, not the underlying legal duty to act. (See *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1210-1211; *Taulbee v. EJ Distribution Corp.* (2019) 35 Cal.App.5th 590, 596; *David v. Hernandez* (2014) 226 Cal.App.4th 578, 584; *Cal. Service Station and Auto. Repair Ass'n v. American Home Assurance Co.* (1998) 62 Cal.App.4th 1166, 1178.)

Third, there is no such thing as garden-variety negligence when suing a public entity. The California Government Claims Act abolishes all public entity common law tort liability, which means that the underlying duty to act must exist within a specific statute imposing a duty to act on a public entity. (See Govt. Code §815; *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803-804; *City of Los Angeles v.*

Superior Court (2021) 62 Cal.App.5th 129, 138.) In that respect, “there is no legal difference” between a claim for negligence *per se* pursuant to Evidence Code §669 and a claim for breach of a mandatory duty pursuant to Govt. Code §815.6. (See *Bologna v. City and County of San Francisco* (2011) 192 Cal.App.4th 429, 435; in accord, *Hoff v. Vacaville Unified School District* (1998) 19 Cal.4th 925, 939; *Rosales v. City of Los Angeles* (2000) 82 Cal.App.4th 419, 430; *Hernandez v. County of Marin*, WL1207231 at *5 (N.D. Cal. 2012).) This Court carefully considered every conceivable basis raised by plaintiff to support the 7th cause of action for breach of a mandatory duty, and found each basis lacking in law or fact. Since no viable basis exists for liability under Govt. Code §815.6, there can be no viable claim for “negligence *per se*” based upon the same enactments (as this Court has already observed).

The motion for reconsideration is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

DAY v. GRIFFIN

19CV43812

PLAINTIFF'S MOTION TO COMPEL DISCOVERY RESPONSES

This is a breach of contract action involving a joint venture to cultivate and sell marijuana. Before the Court are discovery motions by plaintiff seeking responses to Special Interrogatories and a Request for Production of Documents. No opposition has been filed.

On 10/15/21, plaintiff served on defense counsel, via electronic mail, Special Interrogatory No. 32. Defendant did not serve any response.

On 03/17/22, plaintiff served on defendant, via electronic mail, Request for Production of Documents Nos. 1-12. Defendant did not serve any response.

On 06/01/22, counsel for plaintiff emailed defense counsel to inquire about the overdue responses to the RPD. Defense counsel did not respond.

On 07/11/22, plaintiff filed and served the pending motion. Although the motion involves both the Special Interrogatory and the RPDs, thus requiring the tender of two filing fees per Govt. Code §70617, defendant has not responded to the motion (going so far as to mention his own discovery goals in the recent CMC statement, but failing to acknowledge these pending motions).

This Court would like to believe that the silence is explainable, but for present purposes all this Court has is a prima facie display of a discovery abuse. The motion to compel a substantive, verified, objection-free response to the Special Interrogatory and the RPDs is GRANTED. Defendant is ordered to answer the special interrogatory and provide a response, including all responsive documents in his care, custody, or control, verified, without objection, within 20 days. Moreover, pursuant to CCP §2023.030(a) and CRC 3.1348(a) (given the absence of opposition), defendant is ordered to reimburse plaintiff \$510 (representing 1.5 hours at this community's going rate of \$300 per hour plus filing fee) within the same 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling, and to serve defense counsel both electronically and by certified mail, return receipt (to avoid any suggestion that email has failed defense counsel).